

Item 6: Rebate Statement – No Rebate will be received.

Instructions

This statement is approved by the Director of Consumer Affairs Victoria for the purposes of section 49A(4) of the *Estate Agents Act 1980*. It may only be included in an agency authority if an agent is not entitled to any rebate. It should not be used if there is a possibility that an agent may receive a rebate.

The agent will not be, or is not likely to be, entitled to any rebates. A rebate includes any discount, commission, or other benefit, and includes non-monetary benefits.

In addition to the statement approved by the Director of Consumer Affairs Victoria, the following statements are provided in compliance with sections 49A (4)(a) and (c) of the *Estate Agents Act 1980* –

The agent will not be, or is not likely to be, entitled to any rebate in respect of –

- (i) any outgoings; or
- (ii) any prepayments made by a person engaging or appointing the agent (the **client**) in respect of any intended expenditure by the agent on the client's behalf; or
- (iii) any payments made by the client to another person in respect of the work.

The agent is not entitled to retain any rebate and must not charge the client an amount for any expenses that is more than the cost of those expenses.

(*If the agent will be, or is likely to be, entitled to a rebate then the agent must cross out this item, the amendment should be initialled by the parties to this agreement and the agent is to complete the rebate statement approved by the Director of Consumer Affairs Victoria for use where a rebate will be, or is likely to be, received. The approved rebate statement must be attached to each part of this authority at the time that it is signed. The rebate statement is available at <https://www.consumer.vic.gov.au/>).

Item 7. Exclusive Authority Period (no time stated)

If an agreement stating that an estate agent is to act as the sole agent for the sale of any real estate or business does not state when the sole agency is to end, the sole agency ends: **(a)** in the case of a sale by auction, 30 days after the date of the auction **(b)** in any other case, 60 days after the date the agreement is signed by, or on behalf of, the seller of the real estate or business.

Item 8. Agent's role

The Agent will advertise, market, and endeavour to sell the Property.

Item 9. Commission sharing

*The Agent may share the commission with an employee who is an estate agent or an agent's representative, or with an estate agent who is the Agent's business partner. (*If commission will be shared with anyone else, complete and attach the notice of commission sharing approved by the Director of Consumer Affairs Victoria, at the time of signing this Authority. The notice can be downloaded at www.consumer.vic.gov.au)

Item 10. Vendor acknowledgements

The Vendor acknowledges:

- 10.1** being informed by the Agent the commission and Marketing Expenses are negotiable and having read Item 1 at page 2, before signing this Authority;
- 10.2** Marketing Expenses incurred during the period of this Authority must be paid, whether or not the Property is sold;
- 10.3** commission is payable in accordance with this Authority, if the Property is sold;
- 10.4** and agrees that his / her personal information will be collected and may be used, as provided in this Authority;
- 10.5** being informed the Agent has procedures for resolving complaints and disputes, before signing this Authority;
- 10.6** receipt of a copy of this Authority, at the time of signing;
- 10.7** if the Property is "residential property" as defined by the Estate Agents Act 1980, the Agent may be required by law to disclose details relating to the Property, including the sale price and date of sale, and also acknowledges this requirement cannot be altered by an agreement, arrangement or understanding between the Agent and the Vendor or between the Agent or the Vendor and any other person.